SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER	PAGE 1 OF
	51

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			W912DW27QA006	09 NOV 2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No collect calls)*	8. OFFER DUE DATE/ LOCAL TIME
	WHITNY HART	(206) 638-6270	24 NOV 2026 10:00 AM

9. ISSUED BY	CODE	10. THIS ACQUISITION IS	
W071 ENDIST SEATTLE KO CONTRACTING DIVISION, 4735 EAST MARGINAL WAY SOUTH SEATTLE, WA 98134-2329 UNITED STATES WHITNY HART, EMAIL: WHITNY.HART@USACE.ARMY.MIL TELEPHONE: (206) 638-6270	W912DW	☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A)	NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 237110 SIZE STANDARD: USD 45,000,000.00

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING 14. METHOD OF SOLICITATION
☒ SEE SCHEDULE		☐	☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO	CODE	16. ADMINISTERED BY	CODE
SEE SCHEDULE			

17a. CONTRACTOR/ OFFEROR	CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY	CODE
TELEPHONE NUMBER				

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA	26. TOTAL AWARD AMOUNT *(For Government Use Only)*
SEE SECTION G - CONTRACT ADMINISTRATION DATA	

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: SEE SCHEDULE

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED

Section A - Solicitation/Contract Form

Instrument Name: MMD Sewage Lagoon Liner Repair

Product Service Code : Z2ND

Pay close attention to:

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Section M - Evaluation Factors for Award

FAR 52.228-13 Alternative Payment Protections

*** END OF NARRATIVE 1 ***

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Mobilize/Demobilize Product Service Code: Z2ND North American Industry Classification System (NAICS): 237110 Pricing Arrangement: Firm Fixed Price	1	Job		
0002	Clean Lagoon (IAW SOW section 5.1) Product Service Code: Z2ND Pricing Arrangement: Firm Fixed Price	1	Job		
0003	Repair of lagoon accessories (IAW SOW section 5.2) Product Service Code: Z2ND Pricing Arrangement: Firm Fixed Price	1	Job		
0004	Repair Lagoon and return to working condition (IAW SOW section 5.3) Product Service Code: Z2ND	1	Job		

	Pricing Arrangement: Firm Fixed Price				
0005	All testing and inspections (IAW SOW section 6) Product Service Code: Z2ND Pricing Arrangement: Firm Fixed Price	1	Job		

Section C - Description/Specifications/Statement of Work

Statement of Work

*** END OF NARRATIVE 1 ***

Requirements

Cleaning, inspection, and repair of the Mud Mountain Dam (MMD) Sewage Lagoon.

Construction Specification
Scope of Work
Sewage Lagoon Liner Repair

1.0 BACKGROUND: The sewage lagoon liner servicing Mud Mountain Dam does not hold liquid and is believed to leak near its lowest elevation, at the boot around the inlet pipe or lower. Testing shows that the inlet piping itself is not leaking and the outlet from chlorine contact chamber to drainfield is performing as intended. In addition, the outlet pipe leading to the chlorinator is clogged and two PVC inlet pipes leading to the bottom of the lagoon are broken.

2.0 SCOPE OF WORK: The primary work included in this scope includes cleaning the bottom portion of the lagoon, inspection for leaks, repairing any leaks found, performing comprehensive testing to determine whether all leaks have been repaired, and returning lagoon to operational state. Additional work includes replacing two broken PVC inlet pipe and fittings, clearing the clogged outlet pipe and replacing the chlorinator. All work must be complete within 45 calendar days of Notice to Proceed (NTP).

3.0 GENERAL

3.1 Standards and Regulations: Perform to the standards in the contract and comply with all Local, State, and Federal Regulations during the services performed. Ascertain the extent to which these regulations affect the operations resulting from this contract. Comply with all applicable regulations. Applicable regulations include, but are not limited to the following:

a. Engineering Manual (EM) 385-1-1 (USACE – Safety and Health Requirements Manual), dated March 2024;

b. Occupational Safety and Health Standards (29 CFR 1910);

c. ASTM D4437 (2018) Standard Practice for Nondestructive Testing (NDT) for Determining the Integrity of Seams Used in Joining Flexible Polymeric Sheet Geomembranes

d. ASTM D6392 (2012; R 2018) Standard Test Method for Determining the Integrity of Nonreinforced Geomembrane Seams Produced Using Thermo-Fusion Methods

e. ASTM D5641 (2016) Standard Practice for Geomembrane Seam Evaluation by Vacuum Chamber

f. ASTM D5820 (1995; R 2018) Standard Practice for Pressurized Air Channel Evaluation of Dual Seamed Geomembranes

3.1.1 Activity Hazard Analysis (AHA): Prepare an AHA in accordance with Paragraph 1-6 of EM 385-1-1. ENG Form 6206, Sep 2024, or corporate equivalent form presenting the same information may be used. This must be submitted and approved by the Quality Assurance Representative (QAR) before mobilization to site (Submittal b).

3.1.2 Accident Prevention Plan (APP): Use a Competent Person to prepare the site-specific Accident Prevention Plan (APP) in accordance with paragraph 2-7. b of EM-385-1-1 and using ENG Form 6293. This must be submitted and approved by the QAR before mobilization to site (Submittal c). Include:

a. Biological & Pathogen Exposure Control Plan (EM 385-1-1 3-7a)

b. Lock-Out Tag-Out plan (if the aerator will need to be electrically disconnected)

c. Hot work permit in accordance with NFPA 51B or OSHA-compliant corporate equivalent (to include seaming)
d. H2S exposure control plan (controlling for H2S that may have accumulated at the bottom of the lagoon and in the chlorinator chamber)
e. Slip, Trip and Fall Prevention Plan

3.2 Certifications: The Lead Seamer must possess an industry-standard certification for the installation and repair of HDPE liners, such as the IAGI Certified Welding Technician (CWT) certification or a Manufacturer's Installer Certification from an approved HDPE geomembrane manufacturer. In lieu of formal certification, a minimum of three (3) years of documented experience in the installation and repair of HDPE liners, verified by a submitted project log or reference letters, shall be acceptable.

3.3 Measurement and Payment: Payment will be made on a job basis after the accomplishment of all specified work, including all testing witnessed by the government QAR and documented by contractor.

3.4 Location: The sewage lagoon is located at 30525 SE Mud Mountain Rd, Enumclaw, WA. See figure 1 for details.

3.5 Access and Staging Area: Access the work location through the contractor gate to the right of the park gate when approaching. The sewage lagoon sits within a 100'x120' fenced area, which is accessed by a double swing gate which allows for a 20 ft opening. If removal of fencing is required, removal and reinstallation will be done at contractor's expense. An additional 50'x120' area between this fence and the access road may also be used for staging. See figure 1 for details.

3.6 Waste management: Remove and dispose of all waste and sewage properly offsite in accordance with local regulations. Submittal (a), Work Plan, must include plan for disposal of waste.

3.7 Work Hours and Work Limits: Plan and accomplish all work in a way to minimize any interferences and inconveniences to the government, the public, and other contractors. Blockages of roadways are not allowed. Conduct business between the hours of 6:30am and 4pm Monday through Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. Work may take place outside of these hours subject to agreement with operations staff on a case-by-case basis.

3.8 Facilities: Provide portable toilets for the contractor's own use only. A reasonable amount of potable water and electrical power will be made available to the contractor for performing work in the area. Carefully conserve water and electricity furnished. Install and maintain any necessary temporary connections and distribution lines remove these prior to final acceptance of construction.

3.9 Environmental Conditions: Work will take place outdoors and is subject to local weather at the site.

3.10 Operation Security Requirements

General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated point of contact. Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial

training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures – this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

3.10.1 Physical security and access control requirements: All contract personnel requiring physical access to a federal installation or facility shall comply with the access control procedures of that location. Contract personnel requiring unescorted access to meet contract performance requirements on a DoD installation in the US shall be vetted by the installation/facility Provost Marshal/Directorate of Emergency Services/Security Office using the National Crime Information Center-Interstate Identification Index (commonly referred to as "NCIC-III") and Terrorist Screening Database (commonly referred to as "TSDB"). Contract personnel shall comply with all personal identity verification requirements specified in installation/facility policies and procedures. Contract personnel who do not meet requirements for unescorted access to USACE facilities shall coordinate escorted access with the Government representative, as needed. Contract personnel who receive keys, access cards, or lock combinations that provide access to government-owned property shall comply with key and lock control procedures of the RA.

3.10.2 Suspicious Activity Reporting training (e.g. iWATCH, CorpsWatch, or See Something, Say Something): All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

3.10.3 Escorting in classified and/or sensitive areas: In accordance with applicable regulations, all contract personnel who do not possess the appropriate security clearance or access privileges will be escorted in areas where they may be exposed to classified information or operations, sensitive information or activities, or restricted areas.

3.10.4 Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (https://www.e-verify.gov/) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with

FAR 22.102-1(i). An initial list of verified/ eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

3.11 Submittals:

3.11.1 Submittals requiring QAR approval before mobilization to site: Submit the documents under this heading to the QAR no later than five business days after notice to proceed. They will be reviewed and returned within five business days of receipt with either approval or documentation of deficiencies. Address any deficiencies noted and resubmit for approval. All work must be complete within 45 calendar days of NTP regardless of deficiencies in submittals.

a. Detailed work plan and schedule (identification of definable features of work), including:
    i. Detailed work plan identifying all definable features of work
    ii. Sequence and estimated schedule of work to be performed including proposed start date.
    iii. Quality Control (QC) procedures and testing to be used by the contractor
    iv. Testing which will be witnessed by the QAR for Quality Assurance, including all tests listed in section 6 of this scope of work, at minimum. Include format in which test results will be documented.
b. Activity Hazard Analysis (AHA);
c. Accident Prevention Plan;
d. Make and model of vacuum truck to be used;
e. HDPE liner boot product data sheet;
f. HDPE patch material product data sheet;
g. HDPE seam rod/pellet product data sheet;
h. Typical HDPE patch seam detail drawing;
i. Typical HDPE boot seam detail drawing;
j. Product data sheet for replacement PVC pipe and fittings, including banded couplings
k. Product data sheet for paint to be applied to exposed PVC pipe
l. Product data for replacement chlorinator

3.11.2 Submittals required before close-out of contract:

m. Patch material manufacturers quality assurance manual
n. As-built drawings showing details of all work accomplished
o. Test results in format approved from Submittal (a)
p. Manufacturer's warranty information

4.0 MATERIALS: The current liner is identified as GSE HD Textured Geomembrane (Single Sided), 40 mil. The contractor must use equivalent material as verified by product data sheet submittal (texture is not required if the upper side of the current liner is untextured). Seaming rods and pellets must have essentially identical properties to the geomembrane sheet.

5.0 EXECUTION: This section contains a basic outline of required tasks. Show all identifiable features of your work in Submittal (a) – Work Plan.

5.1 Cleaning:

a. Remove aerator to a safe location prior to cleaning. Disconnect electrical and anchor connections as needed.

b. Remove material from the lower section of the liner up to 1 foot vertically above the bottom edge of the inlet pipe, or 2 feet above the bottom of the lagoon, to make it sanitary to work and allow for inspection for leaks. Clean the entire surface and all seams of the inlet pipe boot and on both sides of the wooden baffle. The liner is currently covered by a 4"-6" deep gravel blanket, and approximately 15 cubic yards of gravel will need to be removed. Use a vacuum truck to avoid causing damage to the liner and gently clean liner to reveal surface. Do not use any cleaning material or tool that could cause damage to the liner.

c. Conduct inspection as described in 6.1.

d. Either disposed of soiled gravel in accordance with local regulations or clean and stockpile gravel for reuse.

    a. If gravel is disposed of, procure and transport new gravel to replace it.

    b. If gravel is cleaned and stockpiled, it must be cleaned to a sanitary condition for safety during spreading and levelling. Stockpile in a designated staging area on a continuous, seamless 10-mil polyethylene underlayment; completely enclose with a sediment berm (sandbags or wattles) and cover daily with a anchored 6-mil plastic cover to prevent rainwater infiltration and wind erosion. Prior to returning the gravel to the lagoon, sanitize the material to eliminate waterborne pathogens by thoroughly washing/wetting the gravel with a sodium hypochlorite or calcium hypochlorite solution achieving a minimum concentration of 500 parts per million (ppm) free chlorine (1/3 cup liquid bleach per gallon). Allow the gravel to remain in contact with the sanitizing solution for a minimum of two (2) hours within a temporary, lined containment wash-bay, then rinse with fresh water and allow to dry before spreading and leveling in the lagoon. Capture and store all water from the sanitization process. This water may be pumped into the lagoon after the satisfactory completion of the final controlled water hold test (6.6).

5.2 Repair of Accessories: (Tasks in this item may be completed simultaneously with repair of liner but must be complete before liner is filled with water.)

a. Remove white PVC piping downstream of the breaks at two inlet pipes. Install new schedule 80 PVC of the same nominal pipe size. Utilize 30-degree or 22.5-degree PVC elbows to match 2:1 gravel slope and install a Banded Flexible Coupling (such as a Fernco Strong Back RC Series or Mission Banded Coupling) upstream of new elbow to reduce bending stress on pipe. Install all piping, including elbow, to rest on gravel blanket. Apply two coats of paint to all PVC piping that is exposed above the gravel blanket down to 1 foot below the low pool level during normal operation (the lower edge of the outlet pipe) in accordance with PVC manufacturers' paint recommendation for UV protection (water-based acrylic latex paint).
b. Clear clog between outlet pipe and chlorinator.
c. Replace chlorinator with new (Sanuril model 100 or equivalent) and provide one 45-pound pail of compatible chlorination tablets.

5.3 Repair of Lagoon Liner:

a. Test 6.2 must be satisfactory before executing these tasks. If test is not satisfactory, remediate deficiencies and repeat test.
b. Repair tears, holes, blisters and other defects with patches. Provide patches that have rounded corners, meet requirements of section 4.0, and extend a minimum of 6 inches beyond the edge of defects. The seamer with qualifications submitted and approved must be present for all seaming.
c. If a defect is found in the boot around the inlet pipe or support pipes for baffle, replace the boot, banding and tape and weld new seams around the edges. The seamer with qualifications submitted and approved must be present for all seaming.

d. Perform Test 6.3 and 6.4. Tests must be satisfactory before proceeding to next step. If tests are not satisfactory, remediate deficiencies and repeat test.
e. Install sufficient temporary ballast to keep liner in place and perform test 6.5. If test is not satisfactory, remediate deficiencies and repeat test.
f. Return gravel to lagoon and spread evenly for 4”-6” cover. If new gravel is provided rather than re-use of existing gravel, it must match the size and smoothness of the removed gravel (crushed gravel is not acceptable).
g. Perform test 6.6.
h. Reinstall aerator.

6.0 INSPECTIONS AND TESTS: The government QAR will provide inspection of all work in accordance with FAR 52.212-4(b)– Terms and Conditions – Commercial Products and Commercial Services. This section describes the minimum testing standards. Provide details of how this testing will be carried out in submittal (a) – Work Plan. Notify Point of Contact two business days in advance of conducting tests. Government observation does not relieve contractor of responsibility for quality or constitute acceptance of work. Final acceptance will not occur until after all work and required closeout documents are received.

6.1 Visually inspect for leaks after 5.1 of this scope is accomplished.
6.2 Prior to seaming, collect and test trial seam samples in accordance with ASTM D6392. Test must be satisfactory prior to start of lagoon repair.
6.3 Perform a vacuum box test on patches in accordance with ASTM D5641. Perform visual inspection. Test must be satisfactory prior to controlled water hold test.
6.4 If the inlet pipe boot or baffle support pipe boot is replaced, perform non-destructive Air Lance Testing in accordance with ASTM D4437, Paragraph 7.2. The test nozzle must deliver a minimum of 50 PSI held within 2 inches of the weld edge. Mark any flutters, bubbles, or inflation as a leak, repair, and re-test.
6.5 Perform a controlled water-hold test of the repaired liner system at the elevation of 1 foot above the bottom edge of the inlet pipe for a minimum duration of 24 hours. Measure initial and final water elevations from a fixed datum. Net unexplained water level loss, after adjustment for precipitation, temperature and authorized water additions/removals, shall not exceed 1/8 inch over the test period. If the allowable loss is exceeded, investigate, repair deficiencies, and repeat the test at no additional cost to the Government. Water will be provided by the government.
6.6 Perform a controlled water-hold test of the repaired liner system at the elevation of the outlet pipe for a minimum duration of 24 hours. Measure and record initial and final water elevations from a fixed datum. Do not demobilize until this test is complete. Test will be considered successful if net unexplained water level loss, after adjustment for precipitation, temperature and authorized water additions/removals, is less than 1/4 inch. Additional repairs if this test is unsuccessful are not covered under this contract. Water will be provided by the government.

7.0 WARRANTY: Provide a one-year warranty against any defects in material or workmanship and pass on all manufacturers’ extended warranties. Respond to any claim for warranty work within 14 days of receipt and accomplish work to remedy warranty items within 30 calendar days of receipt of claim.

8.0 POINT OF CONTACT: The point of contact and QAR information will be included with the award.

9.0 REFERENCE DRAWINGS: Drawings provided for reference only. Drawings may not reflect actual site conditions or show all equipment installed and the government does not guarantee the accuracy of the reference drawings and information provided within this document. Verify all existing conditions, relevant dimensions and access points before pricing and commencement of work. Site visit for bidders will be provided.

a. As-Built Drawings – Sewage Treatment Facility, Plan Profile and Sections, Mud Mountain Dam, E-3-8-278, 1974FEB19
b. As-Built Drawings – Sewage Lagoon @ Mud Mountain Dam Liner Replacement, November 30, 2018 (includes current liner product data sheets)

10.0 FIGURES



Figure 1: Location and Access



Figure 2: lagoon photo



Figure 3: lagoon photo



Figure 4: lagoon photo



Figure 5: lagoon photo



Figure 6: lagoon photo



Figure 7: lagoon photo

Section E - Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Inspection and acceptance IAW SOW section 6. DoDAAC: 960509 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS SEATTLE DIST MUD MOUNTAIN DAM, 30525 MUD MOUNTAIN RD ENUMCLAW, WA 98022-8010 UNITED STATES
0002	Inspection and Acceptance Location Both Destination Instructions: Inspection and acceptance IAW SOW section 6. DoDAAC: 960509 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS SEATTLE DIST MUD MOUNTAIN DAM, 30525 MUD MOUNTAIN RD ENUMCLAW, WA 98022-8010 UNITED STATES
0003	Inspection and Acceptance Location Both Destination Instructions: Inspection and acceptance IAW SOW section 6. DoDAAC: 960509 CountryCode: USA

	ARMY CORPS OF ENGINEERS CIVIL WORKS SEATTLE DIST MUD MOUNTAIN DAM, 30525 MUD MOUNTAIN RD ENUMCLAW, WA 98022-8010 UNITED STATES
0004	Inspection and Acceptance Location Both Destination Instructions: Inspection and acceptance IAW SOW section 6. DoDAAC: 960509 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS SEATTLE DIST MUD MOUNTAIN DAM, 30525 MUD MOUNTAIN RD ENUMCLAW, WA 98022-8010 UNITED STATES
0005	Inspection and Acceptance Location Both Destination Instructions: Inspection and acceptance IAW SOW section 6. DoDAAC: 960509 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS SEATTLE DIST MUD MOUNTAIN DAM, 30525 MUD MOUNTAIN RD ENUMCLAW, WA 98022-8010 UNITED STATES

Section F - Deliveries or Performance

0001	**Quantity** 1 Job **Address and POC** **Period of Performance** From 07 Dec 2026 To 21 Jan 2027
0002	**Quantity** 1 Job **Address and POC** **Period of Performance** From 07 Dec 2026 To 21 Jan 2027
0003	**Quantity** 1 Job **Address and POC** **Period of Performance** From 07 Dec 2026 To 21 Jan 2027
0004	**Quantity** 1 Job

	Address and POC **Period of Performance** From 07 Dec 2026 To 21 Jan 2027
0005	**Quantity** 1 Job **Address and POC** **Period of Performance** From 07 Dec 2026 To 21 Jan 2027

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12		
252.236-7000	Modification Proposals--Price Breakdown.	1991-12		

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.204-19	Incorporation by Reference of Representations and Certifications.	2014-12		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.222-6	Construction Wage Rate	2026-02		

	Requirements. (Deviation 2026-O0038)	
52.222-7	Withholding of Funds. (Deviation 2026-O0038)	2026-02
52.222-8	Payrolls and Basic Records. (Deviation 2026-O0038)	2026-02
52.222-9	Apprentices and Trainees. (Deviation 2026-O0038)	2026-02
52.222-10	Compliance with Copeland Act Requirements. (Deviation 2026-O0038)	2026-02
52.222-11	Subcontracts (Labor Standards). (Deviation 2026-O0038)	2026-02
52.222-12	Contract Termination-Debarment.	2014-05
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	2014-05
52.222-14	Disputes Concerning Labor Standards. (Deviation 2026-O0038)	2026-02
52.222-15	Certification of Eligibility.	2014-05
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-90	Addressing DEI Discrimination by Federal Contractors.	2026-04

	(Deviation 2026-O0040, Revision 1)			
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts. (Deviation 2026-O0038)	2026-02		
52.223-23	Sustainable Products and Services. (DEVIATION 2025-O0004)	2026-02	Deviation 2025-O0004	2025-03
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05		
52.228-2	Additional Bond Security.	1997-10		
52.228-14	Irrevocable Letter of Credit.	2014-11		
52.232-23	Assignment of Claims.	2014-05		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03		
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02		
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements. (Deviation	2026-02		

	2026-O0038)	
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02
52.242-14	Suspension of Work.	1984-04

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7003	Control of Government Personnel Work Product.	1992-04		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting (DEVIATION 2026-O0025)	2024-05	Deviation 2026-O0025	2026-06
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	2023-11		

252.223-7008	Prohibition of Hexavalent Chromium.	2023-01
252.225-7048	Export-Controlled Items.	2013-06
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7010	Levies on Contract Payments.	2006-12
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	2023-11
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Terms and Conditions-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S. C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine

restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall-

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S. C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment-

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by FAR part 33 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for

payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon-

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work

performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S. C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.228-13 Alternative Payment Protections. 2000-07

Alternative Payment Protections (July 2000)

(a) The Contractor shall submit **one** of the following payment protections:

1. A payment bond

2. An irrevocable letter of credit

(b) The amount of the payment protection shall be 100 percent of the contract price.

(c) The submission of the payment protection is required within **10** days of contract award.

(d) The payment protection shall provide protection for the full contract performance period plus a one-year period.

(e) Except for escrow agreements and payment bonds, which provide their own protection procedures, the Contracting Officer is authorized to access funds under the payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred, and to withhold such funds pending resolution by administrative or judicial proceedings or mutual agreement of the parties.

(f) When a tripartite escrow agreement is used, the Contractor shall utilize only suppliers of labor and material that signed the escrow agreement.

(End of clause)

52.232-5	Payments under Fixed-Price Construction Contracts.	2014-05

Payments under Fixed-Price Construction Contracts (May 2014)

(a) *Payment of price*. The Government shall pay the Contractor the contract price as provided in this contract.

(b) *Progress payments*. The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

(i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.

(ii) A listing of the amount included for work performed by each subcontractor under the contract.

(iii) A listing of the total amount of each subcontract under the contract.

(iv) A listing of the amounts previously paid to each such subcontractor under the contract.

(v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) *Contractor certification*. Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

_____

(*Name*)

_____

(*Title*)

_____

(*Date*)

(d) *Refund of unearned amounts*. If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8th day after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) *Retainage*. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) *Title, liability, and reservation of rights*. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the contract.

(g) *Reimbursement for bond premiums*. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) *Final payment*. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of1940 (31 U.S.C.3727 and 41 U.S.C. 6305).

(i) *Limitation because of undefinitized work*. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) *Interest computation on unearned amounts*. In accordance with 31 U.S.C. 3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

52.236-2	Differing Site Conditions. (Deviation 2026-O0038)	2026-02

Differing Site Conditions (Feb 2026) (Deviation 2026-O0038)

(a) The Contractor shall promptly, and before the conditions are disturbed, give a written notice to the Contracting Officer of

(1) Latent physical conditions or subsurface conditions at the site which differ materially from those indicated in this contract; or

(2) Unknown physical conditions at the site, of an unusual nature, which differ materially from those ordinarily encountered and generally recognized as inherent in work of the character provided for in the contract.

(b)

(1) The Contracting Officer will investigate the site conditions promptly after receiving such a notice.

(2) If the conditions materially so differ and cause an increase or decrease in the Contractor's cost of, or the time required for, performing any part of the work under this contract an equitable adjustment must be made under this clause.

(c) No request for an equitable adjustment to the contract under this clause will be allowed, unless the Contractor has given the written notice required.

(d) No request for an equitable adjustment to the contract for differing site conditions will be allowed if made after final payment under this contract.

(End of clause)

52.236-3	Site Investigation and Conditions Affecting the Work. (Deviation 2026-O0038)	2026-02

Site Investigation and Conditions Affecting the Work (Feb 2026) (Deviation 2026-O0038)

(a) The Contractor acknowledges that it has taken steps reasonably necessary to ascertain the nature and location of the work, and that it has investigated and satisfied itself as to the general and local conditions which can affect the work or its cost, including-

(1) Conditions bearing upon transportation, disposal, handling, and storage of materials;

(2) The availability of labor, water, electric power, and roads;

(3) Uncertainties of weather, river stages, tides, or similar physical conditions at the site;

(4) The conformation and conditions of the ground; and

(5) The character of equipment and facilities needed preliminary to and during work performance.

(b) The Contractor also acknowledges that it has satisfied itself as to the character, quality, and quantity of surface and subsurface materials or obstacles to be encountered insofar as this information is reasonably ascertainable from an inspection of the site, including all exploratory work done by the Government, as well as from the drawings and specifications made a part of this contract. Any failure of the Contractor to take the actions described and acknowledged in this paragraph will not relieve the Contractor from responsibility for estimating properly the difficulty and cost of successfully performing the work, or for proceeding to successfully perform the work without additional expense to the Government.

(c) The Government assumes no responsibility for any conclusions or interpretations made by the Contractor based on the information made available by the Government. Nor does the Government assume responsibility for any understanding reached or representation made concerning conditions which can affect the work by any of its officers or agents before the execution of this contract, unless that understanding or representation is expressly stated in this contract.

(End of clause)

52.236-5	Material and Workmanship. (Deviation 2026-O0038)	2026-02

Material and Workmanship (Feb 2026) (Deviation 2026-O0038)

(a)

(1) Equipment, material, and articles incorporated into the work covered by this contract shall be new and of the most suitable grade for the purpose intended, unless otherwise specifically provided in this contract.

(2) References in the specifications to equipment, material, articles, or patented processes by trade name, make, or catalog number, shall be regarded as establishing a standard of quality and shall not be construed as limiting competition.

(3) The Contractor may, at its option, use any equipment, material, article, or process that, in the judgment of the Contracting Officer, is equal to that named in the specifications, unless otherwise specifically provided in this contract.

(b) The Contractor shall obtain the Contracting Officer's approval of the machinery, mechanical, and other equipment to be incorporated into the work.

(1) When requesting approval, the Contractor shall furnish to the Contracting Officer the name of the manufacturer, the model number, and other information concerning the performance, capacity, nature, and rating of the machinery and mechanical and other equipment.

(2) When required by this contract or by the Contracting Officer, the Contractor shall also obtain the Contracting Officer's approval of the material or articles which the Contractor contemplates incorporating into the work.

(i) When requesting approval, the Contractor shall provide appropriate and required information concerning the material or articles.

(ii) When directed to do so, the Contractor shall submit samples for approval at the Contractor's expense, with shipping charges prepaid. Machinery, equipment, material, and articles that do not have the required approval are installed or used at the risk of subsequent rejection.

(c) Work under this contract shall be performed in a skillful and workmanlike manner. The Contracting Officer may require, in writing, that the Contractor remove from the work any employee the Contracting Officer deems incompetent, careless, or otherwise objectionable.

(End of clause)

52.236-7	Permits and Responsibilities. (Deviation 2026-O0038)	2026-02

Permits and Responsibilities (Feb 2026) (Deviation 2026-O0038)

(a) The Contractor shall, without additional expense to the Government, be responsible for

obtaining any necessary licenses and permits, and for complying with any Federal, State, and municipal laws, codes, and regulations applicable to the performance of the work.

(b) The Contractor shall be responsible for all damages to persons or property that occur as a result of the Contractor's fault or negligence.

(c) The Contractor shall be responsible for all materials delivered and work performed until completion and acceptance of the entire work, except for any completed unit of work which may have been accepted under the contract.

(End of clause)

52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04

Subcontracts for Commercial Products and Commercial Services (Apr 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Commercial product, commercial service and nondevelopmental item have the meanings contained in Federal Acquisition Regulation (FAR) 2.101.

Subcontract has the meaning at FAR 44.401

(b) Requirements.

(1) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(2) If a clause in the following table is included in the contract, the Contractor shall insert the clause in subcontracts for commercial products or commercial services and must flow down the requirements of the clause to subcontracts as indicated in the specific clause:

Number Title Date

52.203-13 Contractor Code of Business Ethics and Conduct NOV 2021

52.203-17 Contractor Employee Whistleblower Rights NOV 2023

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements JAN 2017

52.204-9 Personal Identity Verification of Contractor Personnel JAN 2011

52.219-8 * Utilization of Small Business Concerns JAN 2025

52.222-35 Equal Opportunity for Veterans JUN 2020

52.222-36 Equal Opportunity for Workers with Disabilities JUN 2020

52.222-37 Employment Reports on Veterans JUN 2020

52.222-40 Notification of Employee Rights Under the National Labor Relations Act DEC 2010

52.222-41 Service Contract Labor Standards AUG 2018

52.222-50 Combating Trafficking in Persons NOV 2021

52.222-50 with Alt I Combating Trafficking in Persons, with its Alternate I MAR 2015

52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements MAY 2014

52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements MAY 2014

52.222-54 Employment Eligibility Verification JAN 2025

52.222-62 Paid Sick Leave Under Executive Order 13706 JAN 2022

52.222-90 Addressing DEI Discrimination by Federal Contractors APR 2026

52.224-3 Privacy Training JAN 2017

52.224-3 with Alt I Privacy Training, with Alternate I JAN 2017

52.225-26 Contractors Performing Private Security Functions Outside the United States OCT 2016

52.232-40 Providing Accelerated Payments to Small Business Subcontractors MAR 2023

52.240-91 Security Prohibitions and Exclusions DATE

52.240-91 with Alt I Security Prohibitions and Exclusions, with its Alternate

I DATE
52.240-92 Security Requirements DATE
52.240-92 with Alt II Security Requirements, with its Alternate II DATE
52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels NOV 2021
* Include only if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.109(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(c) Subcontracts. The Contractor shall include the terms of this clause, including this paragraph (c), in subcontracts awarded under this contract.

(End of clause)

52.252-2 Clauses Incorporated by Reference. 1998-02

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

52.252-6 Authorized Deviations in Clauses. 2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.236-7001	Contract Drawings and Specifications.	2000-08		

CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

(1) Check all drawings furnished immediately upon receipt;

(2) Compare all drawings and verify the figures before laying out the work;

(3) Promptly notify the Contracting Officer of any discrepancies;

(4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and

(5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

(1) Large-scale drawings shall govern small-scale drawings; and

(2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

Title	File	Drawing No.
____	____	____
____	____	____
____	____	____
____	____	____
____	____	____

(End of clause)

Section J - List of Attachments

Davis Bacon Wage Determination WA20260125

*** END OF NARRATIVE 1 ***

"General Decision Number: WA20260125 05/18/2026

State: Washington

Construction Types: Heavy

Counties: Washington Counties of
King

Modification Number	Publication Date
0	01/02/2026
1	05/18/2026

BRWA0001-024 06/01/2025

	Rates	Fringes
BRICKLAYER	$ 55.34	20.05

CARP0196-002 06/01/2025

	Rates	Fringes
PILEDRIVER PERSON	$ 65.53	19.13

CARP0206-005 06/01/2025

	Rates	Fringes
CARPENTER	$ 63.98	19.13

ELEC0046-002 08/04/2025

	Rates	Fringes
ELECTRICIAN	$ 75.96	33.48

ELEC0077-002 02/01/2024

	Rates	Fringes
LINE CONSTRUCTION: LINE PERSON	$ 64.17	24.54

ELEC0077-003 02/01/2023

	Rates	Fringes
TREE TRIMMER: GROUND PERSON	$ 22.60	16.37
TREE TRIMMER	$ 42.57	17.97

ELEC0077-004 02/01/2024

	Rates	Fringes
LINE CONSTRUCTION: (CABLE SPLICER)	$ 64.17	24.77

ELEC0077-005 02/01/2024

	Rates	Fringes
LINE CONSTRUCTION: EQUIPMENT OPERATOR	$ 55.19	20.94

ELEC0077-006 02/01/2023

	Rates	Fringes
LINE CONSTRUCTION: (GROUND PERSON)	$ 37.53	17.74

ENGI0302-079 06/01/2025

	Rates	Fringes
OPERATOR: LOADER (OVERHEAD UNDER 6 YARDS)	$ 61.14	27.57
OPERATOR: LOADER (OVERHEAD 8 YARDS & OVER)	$ 61.93	27.57
OPERATOR: LOADER (OVERHEAD 6 YARDS BUT NOT INCLUDING 8 YARDS)	$ 62.85	27.57

ENGI0302-088 06/01/2025

	Rates	Fringes
OPERATOR: SCREED	$ 61.93	27.57
OPERATOR: ROLLER (PLANT MIX OR MULTI-LIFT MATERIALS)	$ 60.46	27.57
OPERATOR: ROLLER (OTHER THAN PLANT MIX)	$ 56.63	27.57

ENGI0302-091 06/01/2025

	Rates	Fringes
OPERATOR: CRANE GROUP III THROUGH 19 TONS WITH ATTACHMENTS, A-FRAME OVER 10 TONS	$ 60.46	27.57
OPERATOR: CRANE GROUP II 20 TONS THROUGH 44 TONS WITH ATTACHMENTS	$ 61.14	27.57
OPERATOR: CRANE GROUP IAAA 300 TONS AND OVER OR 300' OF BOOM (INCLUDING JIB WITH ATTACHMENTS)	$ 64.66	27.57
OPERATOR: CRANE GROUP IAA: 200 TONS THROUGH 299 TONS, OR 250 OF BOOM (INCLUDING JIB WITH ATTACHMENTS)	$ 63.75	27.57
OPERATOR: CRANE GROUP IA: 100 TONS THROUGH 199 TONS, OR 150? OF BOOM (INCLUDING JIB WITH ATTACHMENTS)	$ 62.85	27.57
OPERATOR: CRANE GROUP I: 45 TONS THROUGH 99 TONS, UNDER 150? OF BOOM (INCLUDING JIB WITH ATTACHMENTS)	$ 61.93	27.57

ENGI0302-100 06/01/2025

	Rates	Fringes
OPERATOR: SCRAPER (SELF PROPELLED UNDER 45)	$ 61.14	27.57
OPERATOR: OILER (TRUCK CRANE OILER/DRIVER: 100 TONS AND OVER)	$ 60.46	27.57
OPERATOR: OILER (DRILL OILERS: AUGER TYPE, TRUCK OR CRANE MOUNT)	$ 61.14	27.57
OPERATOR: GRADER/BLADE	$ 61.93	27.57
OPERATOR: CONCRETE PUMP	$ 61.14	27.57
OPERATOR: BULLDOZER (D9 & UNDER)	$ 60.46	27.57
OPERATOR: BACKHOE/EXCAVATOR/TRACKHOE (OVER 30 METRIC TONS AND UP TO 50 METRIC TONS)	$ 61.93	27.57
OPERATOR: BACKHOE/EXCAVATOR/TRACKHOE (15 TO 30 METRIC TONS)	$ 61.14	27.57

ENGI0302-108 06/01/2025

	Rates	Fringes
OPERATOR: MECHANIC	$ 62.85	27.57
OPERATOR: DRILL (HORIZONTAL/DIRECTIONAL DRILL OPERATOR)	$ 60.46	27.57
OPERATOR: DRILL (HORIZONTAL/DIRECTIONAL DRILL LOCATOR)	$ 61.14	27.57
OPERATOR: DRILL (DRILLING MACHINE)	$ 62.85	27.57

IRON0086-005 07/07/2025

	Rates	Fringes
IRONWORKER	$ 57.94	34.52

LABO0242-005 06/01/2025

	Rates	Fringes
LABORER: COMMON OR GENERAL	$ 50.38	16.96

LABO0242-006 06/01/2025

	Rates	Fringes
TRAFFIC CONTROL: FLAGGER	$ 40.88	16.72
LABORER: FENCE ERECTOR	$ 40.88	16.72

LABO0242-007 06/01/2025

	Rates	Fringes
LABORER: PIPELAYER	$ 51.52	16.99
LABORER: CONCRETE SAW CHAIN	$ 51.52	16.99

LABO0242-008 06/01/2025

	Rates	Fringes
LABORER: HOD CARRIER	$ 52.31	17.01

LABO0242-009 06/01/2025

	Rates	Fringes
LABORER: MASON TENDER - CEMENT/CONCRETE	$ 50.38	16.96

LABO0242-010 06/01/2025

	Rates	Fringes
LABORER: NOZZLE PERSON	$ 52.31	17.01

PAIN0300-002 07/01/2025

	Rates	Fringes
PAINTER	$ 41.24	14.70

PLAS0528-008 06/01/2024

	Rates	Fringes
CEMENT MASON/CONCRETE FINISHER	$ 54.16	21.27

PLUM0026-005 06/01/2025

	Rates	Fringes
PLUMBER	$ 60.72	34.15

PLUM0032-002 06/01/2025

	Rates	Fringes
PIPEFITTER	$ 75.21	33.88

SHEE0066-011 06/01/2025

	Rates	Fringes
SHEET METAL WORKER	$ 69.86	33.39

SUWA2018-025 03/01/2024

	Rates	Fringes

TRUCK DRIVER: WATER TRUCK	$ 31.62	16.84
OPERATOR: PAVER (ASPHALT, AGGREGATE, AND CONCRETE)	$ 32.35	13.44
OPERATOR: MILLING MACHINE	$ 48.95	10.33
OPERATOR: FORKLIFT	$ 49.89	0.00
OPERATOR: BOBCAT/SKID STEER/SKID LOADER	$ 50.49	0.00
MILLWRIGHT	$ 51.09	8.85
LABORER: LANDSCAPE	$ 27.40	0.00
LABORER: ASPHALT, INCLUDES RAKER, SHOVELER, SPREADER AND DISTRIBUTOR	$ 41.71	6.33

TEAM0174-008 06/01/2025

	Rates	Fringes
TRUCK DRIVER: DUMP TRUCK	$ 55.48	27.52

TEAM0313-001 06/01/2025

	Rates	Fringes
TRUCK DRIVER: ASPHALT MIX	$ 55.43	27.52

UAVGWA0012 03/01/2024

	Rates	Fringes
GRADE CHECKER	$ 49.16	18.87

UAVGWA0013 03/01/2024

	Rates	Fringes
TRAFFIC CONTROL: LABORER-CONES/ BARRICADES/BARRELS - SETTER/MOVER/SWEEPER	$ 39.00	14.40

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at https://www.dol.gov/agencies/whd/government-contracts.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.65 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on

the contract from May 11, 2026, through December 31, 2026. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than "SU", "UAVG", "SA", or "SC" denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The "SU" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007

6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

�SU wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The �SA identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the �SA identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

a) a survey underlying a wage determination
b) an existing published wage determination
c) an initial WHD letter setting forth a position on a wage determination matter
d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.

```
            Washington, DC 20210
The request should be accompanied by a full statement of the
interested party's position and any information (wage payment
data, project description, area practice material, etc.) that
the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an
interested party may appeal directly to the Administrative
Review Board (formerly the Wage Appeals Board).  Write to:
            Administrative Review Board
            U.S. Department of Labor
            200 Constitution Avenue, N.W.
            Washington, DC 20210.
================================================================
          END OF GENERAL DECISION
"
```

Section K - Representations, Certification, & Other Statements

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	2023-06		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation 2026-O0038)	2026-02		

Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2026) (Deviation 2026-O0038)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is [ ] is not [ ] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [ ] is not [ ] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions*. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it will [ ] will not [ ] provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Quoter Instructions

1. **Set Aside:**

This solicitation is 100% set aside for Small Business. All work shall be in accordance with the Statement of Work (SOW), attachments, and all other terms and conditions herein.

2. **Quote submission requirements:**

- Closing Date and Time: See Box 8 of STANDARD FORM (SF) 1442 (Page 1 of the Solicitation)
- Faxed quotes will NOT be accepted.
- Emailed quotes will be accepted before closing at e-mail address: whitny.hart@usace.army.mil.
- Subject must include the RFQ number: W912DW27QA006
- Quotes must be valid for 30 days.

All inquiries and/or comments should be submitted to Whitny Hart via email at whitny.hart@usace.army.mil no later than **24 hours prior to closing** for consideration or action taken prior to receipt of quotes. Responses to inquiries will be posted as an amendment to the solicitation via the Contract Opportunities website at www.sam.gov prior to RFQ closing date. Contractors are responsible for reviewing the Contract Opportunities website for any posted amendments to this RFQ.

All quoted items must meet the requirements of the Request for Quote (RFQ) stated in all attachments.

3. **Site Visit:**

See separate attachment "Site Visit - MMD Sewage Lagoon" for information and advanced registration information.

Advance registration is required. The site visit will be canceled if no advance registrations are received.

4. **Basis for Award:**

See FAR 52.212-2 for evaluation factors. Award will be made to the lowest priced quote that receives an Acceptable rating on both the Technical and Past Performance factors.

5. **Required documentation:**

- **Signed and dated STANDARD FORM 1449**
- **Signed and dated STANDARD FORM 30, if applicable, for any Amendments to the solicitation.**
- **All documents required for evaluation - see Section M FAR 52.212-2**
- **Provide all information below in section 6**

Failure to submit any of the required documents may result in the offer being found technically unacceptable.

6. **Contractor Information**

The contractor is required to provide the following information with your quote:

Federal Taxpayer's ID Number:_____

Unique Entity ID (UEI) Number:_____

Cage Code: _____

This requires registration in SAM, web site for registration is www.sam.gov.

Remit to Address:_____

Company Name:_____

DBA (if applicable): _____

Address:_____

City/State/Zip:_____

Phone & Fax Numbers:_____

Point of Contact: _____

E-Mail Address:_____

7. **Notice to Proceed:** Notice to Proceed (NTP) will be issued after receipt of payment protections outlined in clause FAR 52.228-13. Contractor has 10 days after Award to submit.

8. **Prospective Offerors**

Contractors shall be registered in the System for Awards Management (SAM).

"Registered in the System for Award Management (SAM) database" means that -

a. The Offeror has entered all mandatory information, including the unique entity identifier and the EFT indicator, if applicable, the Commercial and Government Entity (CAGE) code, as well as data required by the Federal Funding Accountability and Transparency Act of 2006 (see subpart 4.14), into the SAM database; www.sam.gov.

b. The offeror has completed the Core, Assertions, and Representations and Certification, and Points of contact sections of the registration in the SAM database;

c. The Government has validated all mandatory data fields, to include validation of the Taxpayer Identification Number (TIN) with the Internal Revenue Service (IRS). The Offeror

will be required to provide consent for TIN validation to the Government as a part of the SAM registration process.

d. The Government has marked the record "Active".

This rule more efficiently implements the Debt Collection Improvement Act of 1996, as it requires contractors to be registered in SAM for consideration of future solicitations, awards, and payment. Registration is required prior to award of any contract, basic agreement, basic ordering agreement, or blanket purchase agreement from a solicitation. **LACK OF REGISTRATION IN THE SAM DATABASE UPON SUBMISSION OF QUOTE WILL MAKE AN OFFER INELIGIBLE FOR AWARD**. The web site may be accessed at www.sam.gov.

9. **Electronic funds transfer (EFT)**

Effective 99 Jun 01, the Government will make all payments by EFT (unless the Government VISA credit card is accepted). The only exceptions are: 1) Foreign Vendors, 2) Government Agencies, and 3) One-time payments.

VENDOR PAYMENT ALERT: The USACE Finance Center (UFC) has altered their process for obtaining electronic funds transfer (EFT) banking information utilized for vendor contract payment and will no longer accept UFC Form 23 to update EFT banking information for vendors. Banking information for all vendors will be retrieved from SAM.gov and entered into CEFMS II. There are no exceptions to this policy change. All contractors must notify the UFC via e-mail at: cefc-fc-eft@usace.army.mil when banking information has been updated in SAM.gov. Compliance with this requirement will help ensure timely payment to the correct bank account.

10. **State and Local Taxes**

The U.S. Army Corps of Engineers is exempt from paying state and local taxes per Title 4 United States Code 104-107. The U.S. Army Corps of Engineers Tax ID Number is 62-1642142.

Contractors performing services for the U.S. Army Corps of Engineers are not exempt from state and local taxes in transactions with vendors, suppliers or subcontractors. It is the contractor's responsibility to investigate applicable federal, state, and local taxes, along with any specific exemptions that may exist. This includes any applicable Value-Added Taxes (VAT), sales, use, and excise taxes.

The U.S. Army Corps of Engineers will not accept any invoice with a separate tax line. If there are any appropriate taxes, the contractor should considerer that tax as the cost of doing business and incorporate that cost within the cost of the item or job.

*** END OF NARRATIVE 1 ***

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and	2026-02		

Commercial Services. (Deviation 2026-O0038)

Instructions to Offerors-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include-

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting

Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether

the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

52.252-1	Solicitation Provisions Incorporated by Reference.	1998-02

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of provision)

52.252-5	Authorized Deviations in Provisions.	2020-11

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Section M - Evaluation Factors for Award

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

1. Technical

a. Quoter's shall submit information on at least one (1), but no more than three (3) projects completed within the last 10 years collectively demonstrating the quoter's recent technical experience related to the scope of the requirement outlined in the Statement of Work (SOW). If projects do not collectively address the below minimum requirements, the quoter's proposal will be rated as unacceptable. To be rated acceptable, the project submissions must demonstrate experience in the following two (2) areas of the scope:

1. Cleaning and sanitizing of sewage lagoons
2. Repair of a geosynthetic liner

For each project, provide:

- Project title and location
- Description of work performed
- Dollar value
- Date completed
- Contracting agency or owner
- Point of contact (name, phone, and email)
- Any information related to performance of the contract provided by the customer

b. Lead Seamer Certification: The Quoter shall submit evidence of the Lead Seamer's certifications or qualifications as required by Section 3.2 of the SOW.

The Government will evaluate the quoter's technical experience submitted. Quoters will be evaluated as either Acceptable or Unacceptable for this factor.

> *Acceptable:* The Quoter submitted 1 to 3 projects demonstrating recent experience in both required scope areas (lagoon cleaning and liner repair) and provided valid Lead Seamer certifications/evidence conforming to SOW Section 3.2.
>
> *Unacceptable:* The Quoter failed to submit the required project information, the submitted projects do not clearly demonstrate experience in both scope areas, or the Quoter failed to provide valid Lead Seamer certification/evidence.

2. Past Performance

The Quoter should provide documentation of successful performance on the relevant projects submitted under the Technical factor (such as CPARS, reference letters, or past evaluations).

Note: The Government reserves the right to review CPARS and any other publicly available information to evaluate this factor.

The Government will evaluate the Quoter's record of past and current performance to ascertain the probability of successfully performing the required efforts of the scope of work.

> *Acceptable:* The Government has a reasonable expectation that the Quoter will successfully perform the SOW based on their performance record, OR the Quoter has no record of past performance (Neutral).
>
> *Unacceptable:* The Government does not have a reasonable expectation of successful performance based on a documented record of poor performance.
>
> *Note: Quoters with no historical past performance data will receive a "Neutral" rating, which will be evaluated as "Acceptable" for this factor.*

3. Price

The Quoter shall submit a firm-fixed-price quote using the provided Price Schedule. The Quoter must fill out all Contract Line-Item Numbers (CLINs) and state the total evaluated price for the entire requirement.

Price will be evaluated for fairness and reasonableness. Award will be made to the lowest priced quote that receives an Acceptable rating on both the Technical and Past Performance factors.

(End of provision)